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The Gazette of the Democratic Socialist Republic of Sri Lanka
EXTRAORDINARY

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PART I: SECTION (I) – GENERAL

Government Notifications

My No.: IR/COM/02/2018/117.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Revocation of Order under Section 4 (1)

WHEREAS by Order made under Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (Revised Edition 1956), as amended by Acts, Nos. 14 and 62 of 1957, 14 of 1962 and 39 of 1968 read with Industrial Disputes (Special Provisions) Act, No. 37 of 1968 dated 03.04.2020 and published in the *Gazette of the Democratic Socialist Republic of Sri Lanka Extraordinary* No. 2183/36 dated 09.07.2020 of the Industrial Dispute in respect of the matter specified in the statement of the Commissioner General of Labour dated 26.12.2019.

Mr. U. P. Sanjeeva Nelumdeniya, No. 270/2, Welipillewa, Ganemulla.

and

Ceylon Fisheries Harbour Corporation, No. 15, Rockhouse Lane, Colombo 15.

was referred to Mr. K. A. Piyarathne for settlement by arbitration.

AND whereas it is now deemed expedient that the said Order be revoked, I, Nimal Siripala De Silva, Minister of Labour do hereby revoke the said Order and further make Order that no proceedings be taken upon the said Order dated 03.04.2020.

NIMAL SIRIPALA DE SILVA,
Minister of Labour.

Colombo.
04th January, 2021.

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**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
 (1956 REVISED EDITION)**

Order under Section 4 (1)

WHEREAS AN industrial dispute in respect of the matter specified in the statement of the Commissioner General of Labour which accompanies this order exists between,

Mr. U. P. Sanjeeva Nelumdeniya, No. 270/2, Welipillewa, Ganemulla.

and

Ceylon Fisheries Harbour Corporation, No. 15, Rockhouse Lane, Colombo 15.

NOW THEREFORE I, Nimal Siripala De Silva, Minister of Labour do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Acts, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes-Special Provisions) Act, No. 37 of 1968 hereby appoint Mr. A. M. Asanga Dayaratne, 11B, Kalalpitiya, Pasyala to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

NIMAL SIRIPALA DE SILVA,
 Minister of Labour.

Colombo.
 04th January, 2021.

My No.: IR/COM/02/2018/117.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
 (1956 REVISED EDITION)**

Mr. U. P. Sanjeeva Nelumdeniya, No. 270/2, Welipillewa, Ganemulla.

and

Ceylon Fisheries Harbour Corporation, No. 15, Rockhouse Lane, Colombo 15.

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is

Whether Mr. U. P. Sanjeeva Nelumdeniya, the Computer Network Administrator of the Ceylon Fisheries Harbour Corporation has been caused injustice by not receiving the MM 1-1 salary category for that post and if so, to what relief he is entitled.

B. K. PRABATH CHANDRAKEERTHI,
 Commissioner General of Labour.

Dated at the Office of the Commissioner General of Labour,
 Colombo, on this 1st day of January, 2021.

My No.: IR/COM/01/2019/61.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Revocation of Order under Section 4 (1)

WHEREAS by Order made under Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (Revised Edition 1956), as amended by Acts, Nos. 14 and 62 of 1957, 14 of 1962 and 39 of 1968 read with Industrial Disputes (Special Provisions) Act, No. 37 of 1968 dated 23.09.2020 and published in the *Gazette* of the Democratic Socialist Republic of Sri Lanka *Extraordinary* No. 2195/33 dated 30.09.2020 of the Industrial Dispute in respect of the matter specified in the statement of the Commissioner General of Labour dated 31.07.2020.

Mr. Chaminda Dharshaka Thilakarathna, No. 72/6, Chakkindarama Road, Ratmalana.

and

Lumiere Textiles (Pvt) Limited, Lot 15, Block “A”, Biyagama Export Processing Zone, Walgama, Malwana.

was referred to Mr. Sarath Liyanage for settlement by arbitration.

AND whereas it is now deemed expedient that the said Order be revoked, I, Nimal Siripala De Silva, Minister of Labour do hereby revoke the said Order and further make Order that no proceedings be taken upon the said Order dated 23.09.2020.

NIMAL SIRIPALA DE SILVA,
Minister of Labour.

Colombo.
04th January, 2021.

02 – 426/1

My No.: IR/COM/01/2019/61.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order under Section 4(1)

WHEREAS AN industrial dispute in respect of the matter specified in the statement of the Commissioner General of Labour which accompanies this order exists between,

Mr. Chaminda Dharshaka Thilakarathna, No. 72/6, Chakkindarama Road, Ratmalana.

and

Lumiere Textiles (Pvt) Limited, Lot 15, Block “A”, Biyagama Export Processing Zone, Walgama, Malwana.

NOW THEREFORE I, Nimal Siripala De Silva, Minister of Labour do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Acts, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes-Special Provisions) Act, No. 37 of 1968 hereby appoint Mr. Wijesooriya Arachchige Jayawickrama, Attorney-at-law, 202/B/61, The Village, Kudamaduwa, Mattegama to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

NIMAL SIRIPALA DE SILVA,
Minister of Labour.

Colombo.
04th January, 2021.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Mr. Chaminda Dharshaka Thilakarathna, No. 72/6, Chakkindarama Road, Ratmalana.

and

Lumiere Textiles (Pvt) Limited, Lot 15, Block "A", Biyagama Export Processing Zone, Walgama, Malwana.

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is

Whether Mr. Chaminda Dharshaka Thilakarathna, who worked at Lumiere Textiles Limited (later named - Lumiere Textiles (Pvt) Limited) has been caused injustice by the non-payment of salaries from 12.07.2016 to 08.12.2016, his period of interdiction and vehicle allowance, fuel allowance and driver allowance from 01.05.2011 to 08.12.2016 and if so, to what relief he is entitled.

B. K. PRABATH CHANDRAKEERTHI,
Commissioner General of Labour.

Dated at the Office of the Commissioner General of Labour,
Colombo, on this 31st day of December, 2020.

02 - 426/2

My No.: IR/COM/01/2019/170.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Revocation of Order under Section 4(1)

WHEREAS by Order made under Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (Revised Edition 1956), as amended by Acts, Nos. 14 and 62 of 1957, 14 of 1962 and 39 of 1968 read with Industrial Disputes (Special Provisions) Act, No. 37 of 1968 dated 12.10.2020 and published in the *Gazette* of the Democratic Socialist Republic of Sri Lanka *Extraordinary* No. 2197/16 dated 14.10.2020 of the Industrial Dispute in respect of the matter specified in the statement of the Commissioner General of Labour dated 10.03.2020.

Ceylon Workers Congress, (On behalf of P. Seethadevi), 28 B/15, Padukka Road, Ingiriya.

and

Sri Lanka State Plantation Corporation, 21, BCC Premises, Meeraniya Street, Colombo 12.

was referred to Mr. K. A. Piyaarathne for settlement by arbitration.

AND whereas it is now deemed expedient that the said Order be revoked, I, Nimal Siripala De Silva, Minister of Labour do hereby revoke the said Order and further make Order that no proceedings be taken upon the said Order dated 12.10.2020.

NIMAL SIRIPALA DE SILVA,
Minister of Labour.

Colombo.
12th January, 2021.

02 - 427/1

My No.: IR/COM/01/2019/170.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order under Section 4(1)

WHEREAS AN industrial dispute in respect of the matter specified in the statement of the Commissioner General of Labour which accompanies this order exists between,

Ceylon Workers Congress, (On behalf of P. Seethadevi), 28 B/15, Padukka Road, Ingiriya.

and

Sri Lanka State Plantation Corporation, 21, BCC Premises, Meeraniya Street, Colombo 12.

NOW THEREFORE I, Nimal Siripala De Silva, Minister of Labour do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Acts, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes-Special Provisions) Act, No. 37 of 1968 hereby appoint Captn Mr. M. G. P. Mendis, 15, John, Keels Housing Scheme, Kalalgoda Road, Pannipitiya to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

NIMAL SIRIPALA DE SILVA,
Minister of Labour.

Colombo.

12th January, 2021.

My No.: IR/COM/01/2019/170.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Ceylon Workers Congress, (On behalf of P. Seethadevi), 28 B/15, Padukka Road, Ingiriya.

and

Sri Lanka State Plantation Corporation, 21, BCC Premises, Meeraniya Street, Colombo 12.

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is

Whether Mrs. P. Seethadevi who had worked at Perth Estate owned by Sri Lanka State Plantation Corporation had been caused injustice by termination of her employment from 31.12.2017 without compensation, in spite of the written agreement made by the Sri Lanka State Plantation Corporation to pay a compensation of Rs. 260,000/- for termination of employment and if such injustice had been caused, to what relief she is entitled.

B. K. PRABATH CHANDRAKEERTHI,
Commissioner General of Labour.

Dated at the Office of the Commissioner General of Labour,
Colombo, on this 04th day of January, 2021.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Revocation of Order under Section 4(1)

WHEREAS by Order made under Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (Revised Edition 1956), as amended by Acts, Nos. 14 and 62 of 1957, 14 of 1962 and 39 of 1968 read with Industrial Disputes (Special Provisions) Act, No. 37 of 1968 dated 23.09.2020 and published in the *Gazette* of the Democratic Socialist Republic of Sri Lanka *Extraordinary* No. 2195/33 dated 30.09.2020 of the Industrial Dispute in respect of the matter specified in the statement of the Commissioner General of Labour dated 28.01.2020.

01. Mr. Roshan Gnanapriya Agampodi, No. 46, New Housing Complex, Shanthalokagama, Athurugiriya.
 02. Mr. A. M. K. B. Athauda, No. 213/I, Fashion Garden, Pattiyawatta Road, Kothalawala, Kaduwela.
 03. Mr. P. M. Ananda Karunaratne, No. 46/1A, Thushara Mawatha, Thalahena, Malable *of the one part*
- and

Urban Settlement Development Authority, Ninth Floor, Sethsiripaya, Battaramulla. *of the other part*

was referred to Mr. K. M. Sarathchandra for settlement by arbitration.

AND whereas it is now deemed expedient that the said Order be revoked, I, Nimal Siripala De Silva, Minister of Labour do hereby revoke the said Order and further make Order that no proceedings be taken upon the said Order dated 23.09.2020.

NIMAL SIRIPALA DE SILVA,
Minister of Labour.

Colombo.
04th January, 2021.

02 - 428/1

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order under Section 4(1)

WHEREAS AN industrial dispute in respect of the matter specified in the statement of the Commissioner General of Labour which accompanies this order exists between,

01. Mr. Roshan Gnanapriya Agampodi, No. 46, New Housing Complex, Shanthalokagama, Athurugiriya.
 02. Mr. A. M. K. B. Athauda, No. 213/I, Fashion Garden, Pattiyawatta Road, Kothalawala, Kaduwela.
 03. Mr. P. M. Ananda Karunaratne, No. 46/1A, Thushara Mawatha, Thalahena, Malable *of the one part*
- and

Urban Settlement Development Authority, Ninth Floor, Sethsiripaya, Battaramulla. *of the other part*

NOW THEREFORE I, Nimal Siripala De Silva, Minister of Labour do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Acts, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes-Special Provisions) Act, No. 37 of 1968 hereby appoint Mr. G. M. Dhammike N. Aponso, No. 58, Bhodiyangana Mawatha, Bowala, Kandy to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

NIMAL SIRIPALA DE SILVA,
Minister of Labour.

Colombo.
04th January, 2021.

My No.: IR/COM/04/2018/209.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

01. Mr. Roshan Gnanapriya Agampodi, No. 46, New Housing Complex, Shanthalokagama, Athurugiriya.
02. Mr. A. M. K. B. Athauda, No. 213/I, Fashion Garden, Pattiyawatta Road, Kothalawala, Kaduwela.
03. Mr. P. M. Ananda Karunaratne, No. 46/1A, Thushara Mawatha, Thaladena, Malable *of the one part*

and

Urban Settlement Development Authority, Ninth Floor, Sethsiripaya, Battaramulla. *of the other part*

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is

Whether the disciplinary procedure followed and the punishments given to employees Roshan Gnanapriya Agampodi and A. M. K. B. Athauda who had worked as Assistant Directors and P. M. Ananda Karunaratne who had worked as a Driver in the Urban Settlement Development Authority are just and if not so, to what relief the employees are entitled.

B. K. PRABATH CHANDRAKEERTHI,
Commissioner General of Labour.

Dated at the Office of the Commissioner General of Labour,
Colombo, on this 31st day of December, 2020.

02 – 428/2